

24STCV08540 24STCV08540

County: los-angeles

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Case Number: 24STCV08540 Hearing Date: September 16, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: September

16, 2026

CASE NAME: Rafael

Raz, et al. v. Beith David Educational Center

CASE NO.: 24STCV08540

MOTION

TO MODIFY PRELIMINARY INJUNCTION

MOVING PARTY: Plaintiffs

Rafael Raz and Shlomo Sharaf and Cross-Defendant Hooman M. Gideon

RESPONDING PARTY(S): Defendant/Cross-Complainant

Beith David Educational Center

REQUESTED RELIEF:

1. An

order modifying the May 20, 2024 preliminary injunction ordering Rabbi Farzan Levihim to comply with the Demand Letter requesting financial disclosure, remove Rabbi Levihim's authority over the operations of BDEC, discovlose if

BDEC has any other financial account at any financial institutions, order compliance with laws, and order compliance with BDEC's bylaws.

TENTATIVE RULING:

1. Motion

to modify preliminary injunction is DENIED.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On April 4, 2024, Plaintiffs Rafael Raz, Fariba Yamini, Khosro Yamini, Orit Nazarian, Shlomo Sherf, Javad S. Rad, Mike Noor, Ken Pezeshki, David Dardashti, and Mitra Pezeshki (Plaintiffs) filed a verified petition for an order voiding purported election of non-profit corporation and ordering a new properly supervised election and verified complaint for injunctive relief.

On April 22, 2024, Defendants/Cross-Complainants Fahim Farivar and Beith David Educational Center (Beith David) filed a cross-complaint against Rafael Raz, Hooman Moshe Gideon a/k/a Moshe Hooman Gideon, Shlomo Sherf, and Ken Pezeshki for: (1) breach of contract; (2) breach of the covenant of good faith and fair dealing; (3) breach of fiduciary duty; (4) fraud; (5) conspiracy to commit a fraud; (6) conversion; (7) removal of director from non-profit corporation for malfeasance pursuant to Corps. Code § 7223(a); (8) open book account; (9) books and records; (10) aiding and abetting; (11) express indemnity; (12) implied indemnity; (13) specific performance; (14) intentional interference with prospective economic interests; (15) intentional interference with current business advantage; (16) intentional infliction of emotional distress; (17) civil harassment; (18) defamation; (19) trade libel; (20) ejectment; and (21) declaratory relief.

On May 15, 2024, Plaintiffs filed a motion to disqualify counsel which the court DENIED.

On May 16, 2025, Beith David filed an amended First Amended Cross-Complaint (FACC) which omitted Mr. Farivar as a cross-complainant. The FACC also omitted the causes of action for intentional infliction of emotional distress, civil harassment, defamation, and trade libel.

On May 16, 2024, Cross-Defendants filed a special motion to

strike (anti-SLAPP) on the FACC which the court DENIED.

On May 20, 2024, Plaintiffs filed a request for dismissal of the second cause of action only and Ken Pezeshki filed a request for dismissal of his claims.

On May 20, 2024, the court issued a preliminary injunction.

On May 23, 2024, Plaintiffs filed a request for dismissal as to Fahim Farivar only.

On May 29, 2024, Beith David filed an answer to the complaint.

On May 31, 2024, Plaintiff Mitra Pezeshki filed a request for dismissal as to her claims only.

On June 6, 2024, Beith David filed a motion for judgment on the pleadings which was GRANTED in part.

On June 7, 2024, the court entered a preliminary injunction.

On June 28, 2024, Plaintiff filed a motion to tax costs which the court GRANTED.

On August 2, 2024, Beith David filed a motion to disqualify counsel which the court DENIED.

On October 7, 2024, Plaintiffs/Cross-Defendants filed a notice of appeal.

On December 18, 2024, Beith David filed a motion to bifurcate the cross-complaint from the complaint which the court DENIED.

On May 29, 2025, Plaintiff Orit Nazarian filed a request for dismissal of her claims only.

On July 8, 2025, Plaintiffs filed a motion to tax costs which the court GRANTED in part.

On December 1, 2025, Beith David filed a motion for attorney's fees which the court DENIED.

On June 2, 2026, Cross-Defendants filed the instant motion for order to modify the preliminary injunction. On September 2, 2026, Beith David filed an opposition. Replies were due on or before September 9, 2026. As of September 11, 2026, the court has not received any reply.

LEGAL STANDARD:

In any action, the court may on notice modify or dissolve an injunction or temporary restraining order upon a showing that there has been a material change in the facts upon which the injunction or temporary restraining order was granted, that the law upon which the injunction or temporary restraining order was granted has changed, or that the ends of justice would be served by the modification or dissolution of the injunction or temporary restraining order.

(Code Civ. Proc. (CCP) § 533.) Modification of a preliminary injunction “rests in the sound discretion of the trial court upon a consideration of all the particular circumstances of each individual case.” (Union Interchange, Inc. v. Savage (1959) 52 Cal.2d 601, 606.) The party seeking modification has the burden of proving that the request is justified. (See Loeffler v. Medina (2009) 174 Cal.App.4th 1495, 1504 (Loeffler).)

ANALYSIS:

Request for
Judicial Notice

The court GRANTS Beith David's request for judicial notice.

Modify Preliminary
Injunction

Moving Parties seek an order to modify the preliminary injunction issued on May 20, 2024 due to changed facts concerning Rabbi Leviyim's neutrality and the state of Beith David.

Beith David argues Moving Parties did not meet their burden to modify the injunction, they seek to relitigate issues already decided at the

injunction hearing, the court cannot modify as requested due to the First Amendment, Moving Parties apply statutes for relief they cannot seek, and an evidentiary showing would not support modification at any rate.

As of September 11, 2026, the court has not received a reply.

There are three independent bases to modify an injunction:

(1) change in the facts, (2) change in the law, or (3) ends of justice. (Loeffler, supra, 174 Cal.App.4th at p. 1504 [citing Lockett v. Panos (2008) 161 Cal.App.4th 77, 85.])

Here, Moving Parties move under the first grounds for change of facts. (Mot. P. 2 [“The facts that have unfolded since the injunction demonstrate the opposite.”]) Thus, the court limits its discussion to this factor.

In Loeffler, the trial court applied the “new or different facts [or] circumstances” standard articulated in CCP § 1008(a) when ruling on a motion to dissolve an injunction. (Loeffler, supra, 174 Cal.App.4th at p. 1505-1506.) The Court of Appeal apparently adopted this standard in reviewing the trial court's ruling for an abuse of discretion. (Id. at p. 1506.) Thus, the court will apply this standard, too.

Moving Parties have not met their burden to demonstrate a change in facts warranting modification. They point to loss of members and donations, failing to produce documents pertaining to a new caterer contract, decline in events and facility use, members avoiding life-cycle events at Beith David, public health violations, the rabbi's lack of neutrality, inability to attract new members or donations, hostile conduct toward dissenting community members, and Beith David was originally founded without a rabbi. They support these claims with declarations. But there is more.

Based on these “new facts” Moving Parties ask the court to remove Rabbi Leivhim's authority over Beith David. (Mot. P. 7, Request for Relief No. 1.)

To avoid conflict with the establishment clause: (1) the challenged government activity must have a secular legislative purpose, (2) the

principal or primary effect of the activity must be one that neither advances nor inhibits religion, and (3) the activity must not foster an excessive government entanglement with religion. (Singh v. Singh (2004) 114 Cal.App.4th 1264, 1286.)

These declarations supporting the motion demonstrate disagreement and unhappiness with Rabbi Levihim's management style. (See, e.g., Declaration of Shlomo Sherf ¶ 7.) But the court may not resolve disputes concerning a religious entity's governance or administration. (New v. Kroeger (2008) 167 Cal.App.4th 800, 815.) Removing Rabbi Levihim would serve no apparent secular purpose and would improperly entangle the court in religious governance.[1]

Accordingly, the court DENIES the motion to modify the preliminary injunction.

CONCLUSION:

For the foregoing reasons, the court decides the pending motion as follows:

1. Motion to modify preliminary injunction is DENIED.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: September 16, 2026 _____ Upinder S. Kalra

Judge
of the Superior Court

[1]

Based on this analysis, the third grounds for modification to serve the ends of justice likewise fails.